



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 19 1995 400 Seventh Street, S.W.
Washington D.C. 20590

DOT-E 8873
(THIRD REVISION)

1. Akzo Nobel Chemicals Inc., Chicago, Illinois, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of class 3 for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of DOT MC-312 cargo tanks not presently permitted for the materials identified in paragraph 4, and provides no relief from any regulation other than as specifically stated. NOTE: Reference to 49 CFR Sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Akzo Chemicals Inc.'s application dated June 1, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Carbon disulfide and Waste carbon disulfide solution, Class 3 (UN1131).

4. PROPER SHIPPING NAME (49 CFR 172.101). Carbon disulfide, or Waste carbon disulfide solution, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.121.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification MC-312 cargo tank having a nominal water capacity of 4,500 gallons and a design pressure of 75 psig. Each cargo tank must be designed and fabricated in accordance with Heil Company's drawing SD 1210-C, Revision C, dated June 20, 1983 and vessel calculations dated August 9, 1982, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

b. The tank may not be loaded with more than 3825 gallons.

c. In a filled or empty condition, the tank's vapor space must be padded with an inert gas at not over 20 psig.

d. The tank's relief devices must be set to discharge at 75 psig. The total venting capacity of the relief devices is 15,719 cfm at standard conditions.

e. The cargo tank is equipped with a Midland magnetic float gauging device, type B-612, installed in the top center of the tank on a six inch nozzle.

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f. Safety valve of the tank is Midland type A-1679 and no excess flow valves are required. A visual pressure gauge rated 0 to 45 psig is located on the manway cover. No bottom outlets are allowed and any bottom washout openings must be securely closed off.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Each cargo tank must be reinspected and retested once every 2 years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-312 cargo tank.

c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8873".

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

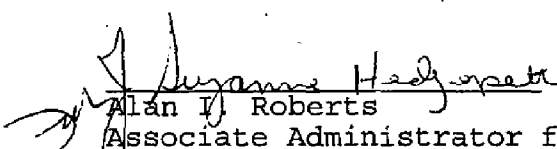
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. EXPIRATION DATE. August 1, 1995.

Issued at Washington, D.C.:

JAN 19 1995


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator
for Hazardous Materials Safety, Research and Special
Programs Administration, U.S. Department of
Transportation, Washington, DC 20590. Attention
DHM-31.

The original of this exemption is on file at the
above office. Photo reproductions and legible
reductions of this exemption are permitted. Any
alteration of this exemption is prohibited.

Dist: FHWA